

burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.) Here, the record does not show novel legal issues, exceptional difficulty, or skill beyond that reflected in the approved hourly rates. The court denies the requested 0.10 multiplier.

#### *Costs*

Plaintiff seeks \$1,296.91 in costs. Defendant challenges \$760.51 of Plaintiff’s \$1,296.91 in claimed costs: court reporter fee (\$550) for a future hearing; electronic filing and service (\$73.77) absent documentation or explanation; and mileage (\$136.74). Plaintiff did not address the challenged costs individually but instead cites *Briggs v. Elliott* (2023) 92 Cal.App.5th 683, arguing that the court should disregard Defendant’s cost challenges because Defendant filed no standalone motion to tax costs. However, Plaintiff’s reliance on *Briggs* is misplaced. *Briggs* involved a different statutory scheme (CCP § 685.070). Defendant challenges the reasonableness and actual incurrence of costs sought as part of Civ. Code §1794(d). Plaintiff does not adequately establish the \$550 court reporter charge was actually incurred. Plaintiff also does not provide sufficient documentation or explanation for the \$73.77 electronic filing or service charge. For the \$136.74 mileage charge, Plaintiff’s cost memorandum states the expense was incurred on 1/7/26 for travel to and from Plaintiff’s deposition (\$68.37 each way). The court allows that documented and reasonably necessary expense but disallows the \$550 court reporter charge and the \$73.77 electronic filing and service charge, reducing the cost award by \$1,296.91 minus \$623.77 to \$673.14.

**The court grants the motion and awards reduced amounts of \$10,375.50 in lodestar fees (no multiplier) and \$673.14 in costs, for a total award of \$11,048.64. Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 14, 2026, 5:00 p.m.**

4.

| CASE #      | CASE NAME      | HEARING NAME |
|-------------|----------------|--------------|
| CVRI2504557 | JONES VS JONES | DEMURRER     |

#### **Tentative Ruling:**

The meet-and-confer requirement has been met.

#### *General Demurrer*

##### *Sham Pleading*

Defendants point out that the SAC alleged the settlement terminated the parties’ business relationship, but the TAC deleted this allegation and now alleges under the

third cause of action for breach of fiduciary duty that Jared acted for Plaintiff “at all relevant times” without explaining the change or alleging any post-settlement engagement. Defendants argue the Court should consider such omission under the sham-pleading doctrine. However, this is the extent of Defendants’ argument relating to the sham pleading doctrine. (Mot., pg. 4:9-14.)

In opposition, Plaintiff argues the Court should disregard this argument because the demurrer does not reach the first three causes of action, and Defendants’ discussion of sham pleading and its request to sustain the demurrer ‘as to all issues’ do not expand the noticed grounds.

Defendants cite to no legal authority to its conclusory claim. **The Court disregards the sham pleading argument as waived.** (*Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 “[E]very brief should contain a legal argument with citation of authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration”]; *Meridian Financial Services, Inc. v. Phan* (2021 67 Ca.App.5th 657, 701, fn. 15 [failure to develop an argument forfeits that point].)

#### *Fourth Cause of Action – Unfair Business Practices*

Defendants point out the UCL claim repackaged the alleged nonpayment of mortgages, taxes, insurance, and a note without a distinct restitution theory. Defendants argue Plaintiff lacks standing and the TAC fails to plead a viable unlawful or unfair prong because there is no allegation of conduct threatening competition or consumers, citing *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 185-187 (“*Cel-Tech*”) and *Berryman v. Merit Property Management, Inc.* (2007) 152 Cal.App.4th 1544, 1554-1555. However, Defendants misapply *Cel-Tech* by conflating the Unfair Practices Act with the UCL. The *Cel-Tech* court distinguishes the two acts and held the scope of UCL is broad that includes any unlawful, unfair, or fraudulent business act or practice, “even if not specifically proscribed by some other law.” (*Cel-Tech, supra*, 20 Cal.4th at 180.) Likewise, the *Berryman* court does not limit a plaintiff’s UCL claim to conduct threatening competition or consumers on the unfair prong analysis. (See *Berryman, supra*, 152 Cal.App.4th at 1555-1556.) Defendants argue there are no facts pled Hopkins engaged in an unfair business practice.

Plaintiff argues injunctive relief and restitution are independent UCL remedies and uncertainty over restitution does not eliminate a claim for injunctive relief aimed at ongoing conduct, relying on *Clayworth v. Pfizer, Inc.* (2010) 49 Cal.4th 758, 788-791. The California Unfair Competition Law (“UCL”), or Business & Professions Code section 17200, prohibits any business act or practice that is unlawful, unfair, or fraudulent. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) A cause of action for violating this statute “borrows” actionable conduct and makes it independently actionable under the unfair competition law. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) To establish standing under the UCL, a plaintiff must demonstrate some form of economic injury. (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 323.) There must be a causal connection between the economic injury and the alleged unfair business activity.

(*Daro v. Superior Court* (2007) 151 Cal.App.4th 1079, 1099.) In *Clayworth, supra*, 49 Cal.4th 768, plaintiff pharmacies filed suit against pharmaceutical manufacturers under the Cartwright Act and UCL, alleging manufacturers unlawfully conspired to set artificially high prices for their brand-name pharmaceuticals in the US market at levels 50-400 percent higher than the same drugs sold outside the US, forcing pharmacies to pay an overcharge. (*Id.* at 764-765.) Pharmacies alleged they were injured by manufacturers' unfair business practices, seeking treble damages, restitution, and injunctive relief. (*Id.* at 765, 787.) The Supreme Court held pharmacies established standing because they acted as retailers for manufacturers, thus had indirect business dealings with manufacturers, **lost money from the overcharges they paid**, and the loss was the result of an unfair business practice due to manufacturers' price fixing conspiracy in violation of state law. (*Id.* at 788, emphasis added.) The court rejected manufacturers' argument pharmacies suffered no loss because pharmacies passed on the overcharges, holding the argument conflates the issue of standing with the issue of remedies. (*Id.* at 789.) The court clarified "the right to seek injunctive relief [under the UCL] is not dependent on the right to seek restitution; the two are wholly independent remedies" and that injunctive relief is the primary form of relief under the UCL. (*Id.* at 790.)

Through use of paragraphs of incorporation, the TAC alleges Defendants' (which includes Hopkins) unfair, unlawful, and fraudulent business practices through the nonpayment of mortgages, taxes, insurance, and a note. (TAC ¶¶44, 47-48.) Plaintiff lost money from Defendants' nonpayment. (*Id.* at ¶49.) As alleged, the Defendants' nonpayment continues as it is alleged that the obligations remain in Plaintiff's name. (*Id.* at ¶48.) The TAC further alleges, "Plaintiff seeks restitution, *injunctive relief*, and other equitable relief permitted under Business and Professions Code section 17200." (*Id.* at ¶51, emphasis added.) Applying *Clayworth*, the TAC here seeks injunctive relief, the primary form of relief under the UCL, and not just restitution based on the breach of contract claim. Accepting the allegations as true for purposes of demurrer, **the court overrules the demurrer as to the fourth cause of action.**

#### *Fifth Cause of Action – Accounting*

An action for account requires (1) a relationship exists between the plaintiff and defendant and (2) some balance is due the plaintiff that can only be ascertained by an accounting. (*Sass v. Cohen* (2020) 10 Cal.5th 861, 869.) An accounting action is a means of discovery and is not available where the plaintiff alleges the right to recover a sum that can be made certain by calculation. (*Id.*) "[A] plaintiff seeking an accounting cannot allege the right to recover a sum certain because he or she lacks the information necessary to determine the precise amount may be due...the fact that the gap can be filled via discovery implies the information is within the control of the defendant. In other words, the defendant in an accounting action possesses information unknown to the plaintiff that is relevant for the computation of money owed." (*Id.*, internal quotes omitted.)

Defendants argue this claim fails because the TAC fails to plead a relationship, fails to allege why an ordinary damages claim, document discovery, or contention discovery would be inadequate, and fails to allege Hopkins or JSAMJ owes a balance. Defendants point out Plaintiff's alleged damages remain capable of calculation.

Conversely, Plaintiff maintains a relationship exists as to all Defendants and the owed amounts cannot be made certain from Plaintiff's records.

The TAC alleges a relationship exists between Plaintiff and all Defendants, and Plaintiff cannot determine the amount due because the relevant records are in Defendants' possession or control. (TAC ¶¶53-55.) Although Plaintiff argues the claim can proceed for profits earned from property after its transfer, there are no allegations in the TAC that the properties earned profits. Throughout the TAC, Plaintiff seeks restitution for obligations only, not profits. (*Id.* at ¶¶10, 13-14, 19.)

**The court sustains the demurrer as to the fifth cause of action, with ten (10) days leave to amend.**

#### *Sixth Cause of Action – Declaratory Relief*

In cases of actual controversy relating to the legal rights and duties of the respective parties in relation to a contract or property, a person may bring an action for declaration of his or her rights and duties. (Code Civ. Proc., § 1060.) "A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the parties under a written instrument or with respect to property and requests that the rights and duties of the parties be adjudged by the court." (*Wellenkamp v. Bank of America* (1978) 21 Cal.3d 943, 947.) Declaratory relief operates prospectively, serving to set controversies at rest...where there is an accrued cause of action for an actual breach of contract or other wrongful act, declaratory relief may be denied. (*Osseous Technologies of America v. Discovery Ortho Partners* (2010) 191 Cal.App.4th 357, 366.)

Defendants argue this claim fails because it seeks declarations about past breach and payment issues already pleaded in the contract claims. Defendants contend the substance of the claim remains backward-looking. Defendants argue, "TAC paragraph 21 expressly admits that the note 'listed JSAMJ Inc. as borrower,' and the note attached as an exhibit to the SAC identifies Anderson as payee." (Mot., pg. 9:16-18.) Defendants' reliance on an exhibit attached to the SAC instead of the operative TAC is inappropriate because the filing of an amended complaint moots a motion directed to a prior complaint. (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1130-1131.) Defendants claim this cause of action is defective as to Hopkins because the TAC does not allege that Hopkins is a party to the Agreement or that Hopkins owes Plaintiff any contractual payment or indemnity obligation.

In opposition, Plaintiff cites *Fox Paine & Co., LLC v. Twin City Fire Ins. Co.* (2026) 20 Cal.5th 188 to argue that defenses which may later defeat liability do not justify rejecting

an adequately pleaded declaratory-relief claim and that doubts of the propriety of the claim are generally resolved in favor of relief. (*Id.*, slip opn. at 18-20, 42-44.) Defendants counter that liberal construction does not excuse missing essential allegations.

The allegations here are sufficient. Through use of paragraphs of incorporation, a present and actual controversy exists as to the UCL claim. The TAC alleges Defendants' nonpayment continues as obligations remain in Plaintiff's name such that injunctive relief is sought. (TAC ¶¶48, 51.) As to Hopkins, he is alleged to be a partner, owner, operation, or person exercising control over JSAMJ who also collected or controlled rents, property income, records, title, and/or property benefits after the transfer. (*Id.* at ¶¶4, 18.) JSAMJ is alleged to be the listed borrower under the agreement and the Brockton promissory note. (*Id.* at ¶21.) Thus, Hopkins is appropriately alleged as a defendant under this claim.

**The court overrules the demurrer as to the sixth cause of action.**

*Special Demurrer*

*JSAMJ*

Defendants argue the TAC is uncertain as to JSAMJ because it is not included in the caption of the TAC. Uncertainty demurrers are strictly construed and generally overruled where the facts alleged are sufficiently clear to allow a response and where any ambiguity can be clarified under modern discovery procedures. (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612.) Code of Civil Procedure section 422.40 requires the title of a pleading to include the names of all parties. The TAC caption does not list JSAMJ as a defendant. However, paragraph 3 of the TAC identifies JSAMJ Inc. as a California corporation that operates a real estate brokerage and property management business and alleges that at all relevant times, Jared acted as an officer, agent, and representative of JSAMJ. Further, the 4th and 5th causes of action are expressly asserted against Jared, JSAMJ, Hopkins, and the Trust. The body of the TAC unambiguously identifies JSAMJ as a defendant, alleges its role, and asserts specific causes of action against it. Defendants have appeared and filed this demurrer on behalf of JSAMJ, demonstrating actual notice and absence of genuine confusion. The omission from the caption is a curable technical pleading defect, not a substantive barrier to stating a claim. **The demurrer is sustained, with ten (10) days leave to amend.**

Plaintiff filed his FAC in response to a pending demurrer thus is not included under the three-amendment limit pursuant to Code of Civil Procedure section 472, subdivision (a). Following a successful demurrer, Plaintiff filed his SAC. Following a second successful demurrer, Plaintiff filed the operative TAC. Accordingly, Plaintiff is afforded one last amendment under the three-amendment limit.

**In sum, the court overrules the general demurrer as to the 4<sup>th</sup> and 6<sup>th</sup> causes of action, but sustains the general demurrer as to the 5<sup>th</sup> cause of action and the**

**special demurrer, with ten (10) days leave to amend. Moving party is ordered to submit a proposed order consistent with this ruling by no later than September 14, 2026, by 5:00 p.m.**

**5.**

| <b>CASE #</b> | <b>CASE NAME</b> | <b>HEARING NAME</b> |
|---------------|------------------|---------------------|
| CVRI2504557   | JONES VS JONES   | MOTION TO STRIKE    |

**Tentative Ruling:**

Pursuant to Code of Civil Procedure sections 435 and 436, Defendants seek to strike “and the Brockton promissory note” from paragraphs 19, 28, and 62(b); paragraphs 21 and 22 in their entirety; and request for restitution and injunctive relief in paragraphs 49, 51, and Prayer for Relief paragraphs 2 and 5. Defendants argue the TAC does not plead facts that form the basis for Plaintiff’s request for restitution and injunctive relief. However, these portions go towards the legal sufficiency of the pleadings and the basis for Plaintiff’s request for restitution and injunctive relief. There is no basis for striking these allegations. **The court denies the motion to strike.**